

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

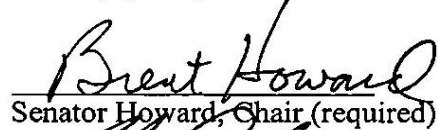
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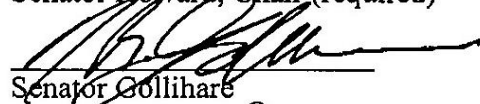
I move to amend Senate Bill No. 1708 by substituting the attached floor substitute (Request # 3800) for the title, enacting clause, and entire body of the measure.

Submitted by:

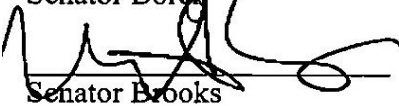

Senator Jech

I hereby grant permission for the floor substitute to be adopted.

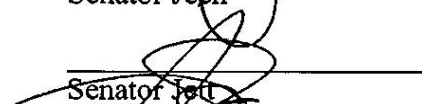

Senator Howard, Chair (required)

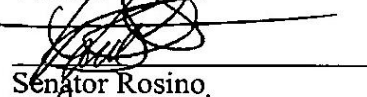

Senator Gollihare

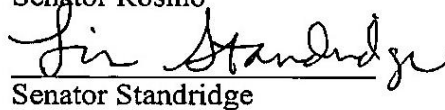

Senator Boren


Senator Brooks


Senator Jech


Senator Jech


Senator Rosino


Senator Standridge

Senator Paxton, President Pro Tempore

Senator Daniels, Majority Floor Leader

Note: Judiciary Committee majority requires five (5) members' signatures.

Jech-BLB-FS-SB1708
3/25/2026 3:24 PM

(Floor Amendments Only)

Date and Time Filed: 3/25/26 3:42pm jd

☒ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 1708

By: Jech, Jett, Standridge,
Prieto, Wingard, Grellner,
Frix, Logan, McIntosh,
Murdock, Stewart, Woods,
Stanley, and Burns of the
Senate

and

Tedford of the House

FLOOR SUBSTITUTE

[child custody - presumption - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 43 O.S. 2021, Section 109, as
amended by Section 1, Chapter 24, O.S.L. 2024 (43 O.S. Supp. 2025,
Section 109), is amended to read as follows:

Section 109. A. Except as provided in subsection I of this
section and Section 112.2 of this title and unless otherwise agreed
to by the parents, there shall be a presumption, rebuttable by a
preponderance of the evidence, that joint legal custody, joint
physical custody, and shared parenting time is in the best interest
of the child. In ~~awarding~~ granting the custody of a minor unmarried

1 child or in appointing a general guardian for the child, the court
2 shall consider what appears to be in the best interests of the
3 physical ~~and~~, mental, and moral welfare of the child.

4 B. The court, pursuant to the provisions of subsection A of
5 this section, may grant the care, custody, and control of a child ~~to~~
6 ~~either parent or~~ to the parents jointly or, if the presumption is
7 rebutted, to one parent.

8 For the purposes of this section, the terms joint custody and
9 joint care, custody, and control mean the sharing by parents in all
10 or some of the aspects of physical and legal care, custody, and
11 control of their children.

12 C. ~~If either or both parents have requested joint custody, the~~
13 The parents shall file with the court their plans for the exercise
14 of joint care, custody, and control of their child. The parents of
15 the child may submit a plan jointly, or either parent or both
16 parents may submit separate plans. Any plan shall include, but is
17 not be limited to, provisions detailing the physical living
18 arrangements for the child, child support obligations, medical and
19 dental care for the child, child care or day care for the child,
20 school placement, and visitation and parenting time rights. A plan
21 shall be accompanied by an affidavit signed by each parent stating
22 that the parent agrees to the plan and will abide by its terms. The
23 plan and affidavit shall be filed with the petition for a divorce or
24 legal separation or after the petition is filed.

1 D. The court shall issue a final plan for the exercise of joint
2 care, custody, and control of the child or children, based upon the
3 plan submitted by the parents, separate or jointly, with appropriate
4 changes deemed by the court to be in the best interests of the
5 child. ~~The court also may reject a request for joint custody and~~
6 ~~proceed as if the request for joint custody had not been made.~~

7 E. The parents having joint custody of the child may modify the
8 terms of the plan for joint care, custody, and control. The
9 modification to the plan shall be filed with the court and included
10 with the plan. If the court determines the modifications are in the
11 best interests of the child, the court shall approve the
12 modifications.

13 F. The court also may modify the terms of the plan for joint
14 care, custody, and control upon the request of one parent. The
15 court shall not modify the plan unless the modifications are in the
16 best interests of the child.

17 G. 1. The court may terminate a joint custody decree upon the
18 request of one or both of the parents or whenever the court
19 determines the decree is not in the best interests of the child.

20 2. Upon termination of a joint custody decree, the court shall
21 proceed and issue a modified decree for the care, custody, and
22 control of the child as if no such joint custody decree had been
23 made.

1 H. In the event of a dispute between the parents having joint
2 custody of a child as to the interpretation of a provision of the
3 plan, the court may appoint an arbitrator to resolve the dispute.
4 The arbitrator shall be a disinterested person knowledgeable in
5 domestic relations law, child well-being, and family counseling.
6 The determination of the arbitrator shall be final and binding on
7 the parties to the proceedings until further order of the court.

8 If a parent refuses to consent to arbitration, the court may
9 terminate the joint custody decree.

10 I. 1. In every proceeding in which there is a dispute as to
11 the custody of a minor child, a determination by the court that
12 child abuse, domestic violence, stalking, or harassment has occurred
13 raises a rebuttable presumption that sole custody, joint legal or
14 physical custody, or any shared parenting time or plan with the
15 perpetrator of child abuse, domestic violence, harassing, or
16 stalking behavior is detrimental to and not in the best interest of
17 the child, and it is in the best interest of the child to reside
18 with the parent who is not a perpetrator of child abuse, domestic
19 violence, harassing, or stalking behavior.

20 2. For the purposes of this subsection:

- 21 a. "child abuse" shall have the same meaning as "abuse"
22 as defined pursuant to the Oklahoma Children's Code in
23 Section 1-1-105 of Title 10A of the Oklahoma Statutes,
24

1 b. "domestic violence" means the threat of the infliction
2 of physical injury, any act of physical harm or the
3 creation of a reasonable fear thereof, or the
4 intentional infliction of emotional distress by a
5 parent or a present or former member of the household
6 of the child, against the child or another member of
7 the household including coercive control by a parent
8 involving physical, sexual, psychological, emotional,
9 economic, or financial abuse,

10 c. "harassment" means a knowing and willful course or
11 pattern of conduct by a parent directed at another
12 parent which seriously alarms or is a nuisance to the
13 person, and which serves no legitimate purpose
14 including, but not limited to, harassing or obscene
15 telephone calls or conduct that would cause a
16 reasonable person to have a fear of death or bodily
17 injury, and

18 d. "stalking" means the willful course of conduct by a
19 parent who repeatedly follows or harasses another
20 person as defined in Section 1173 of Title 21 of the
21 Oklahoma Statutes.

22 3. If a parent is absent or relocates as a result of an act of
23 domestic violence by the other parent, the absence or relocation
24

1 shall not be a factor that weighs against the parent in determining
2 custody or visitation.

3 4. The court shall consider, as a primary factor, the safety
4 and well-being of the child who is the victim of child abuse and of
5 the parent who is the victim of domestic violence, harassment, or
6 stalking behavior, in addition to other facts regarding the best
7 interest of the child.

8 5. The court shall consider the history of the parent causing
9 physical harm, bodily injury, assault, verbal threats, stalking, or
10 harassing behavior, or the fear of physical harm, bodily injury, or
11 assault to another person including the minor child, in determining
12 issues regarding custody and visitation.

13 SECTION 2. AMENDATORY 43 O.S. 2021, Section 110.1, is
14 amended to read as follows:

15 Section 110.1. It is the policy of this state to assure that
16 minor children have frequent and continuing contact with parents who
17 have shown the ability to act in the best interests of their
18 children and to encourage parents to share in the rights and
19 responsibilities of rearing their children after the parents have
20 separated or dissolved their marriage. The court may consider
21 evidence of the ability of the parents to cooperate on issues
22 related to their minor children, as well as evidence of child abuse,
23 domestic violence, stalking, or harassment as defined in paragraph 2
24 of subsection I of Section 109 of this title. To effectuate this

1 policy, ~~if requested by a parent,~~ the court ~~may~~ shall provide
2 substantially equal access to the minor children to both parents at
3 a temporary order or final hearing, unless the court finds that
4 shared parenting would be detrimental to the child. The court shall
5 issue written findings of fact and conclusions of law to support its
6 decision after a final hearing on the merits.

7 SECTION 3. AMENDATORY 43 O.S. 2021, Section 112, is
8 amended to read as follows:

9 Section 112. A. A petition or cross-petition for a divorce,
10 legal separation, or annulment must state whether or not the parties
11 have minor children of the marriage. If there are minor children of
12 the marriage, the court:

13 1. Shall make provision for guardianship, custody, medical
14 care, support, and education of the children;

15 2. Unless not in the best interests of the children, ~~may~~ shall
16 provide for the visitation of the noncustodial parent with any of
17 the children of the noncustodial parent; and

18 3. May modify or change any order whenever circumstances render
19 the change proper either before or after final judgment in the
20 action; provided, that the amount of the periodic child support
21 payment shall not be modified retroactively or payment of all or a
22 portion of the past due amount waived, except by mutual agreement of
23 the obligor and obligee, or if the obligee has assigned child
24 support rights to the Department of Human Services or other entity,

1 by agreement of the Department or other entity. Unless the parties
2 agree to the contrary, a completed child support computation form
3 provided for in Section 120 of this title shall be required to be
4 filed with the child support order.

5 The social security numbers of both parents and the child shall
6 be included on the child support order summary form provided for in
7 Section 120 of this title, which shall be submitted to the ~~Central~~
8 ~~Case Registry~~ central case registry as provided for in Section 112A
9 of this title with all child support or paternity orders.

10 B. In any action in which there are minor unmarried children,
11 in ~~awarding~~ granting or modifying the custody of the child or in
12 appointing a general guardian for the child, the court shall be
13 guided by the provisions of Section 112.5 of this title and shall
14 consider what appears to be in the best interests of the child.

15 C. 1. When it is in the best interests of a minor unmarried
16 child, the court shall:

- 17 a. assure children of frequent and continuing contact
18 with both parents after the parents have separated or
19 dissolved their marriage, and
20 b. encourage parents to share the rights and
21 responsibilities of child rearing in order to effect
22 this policy.

23 2. There shall be ~~neither a legal preference nor~~ a presumption
24 ~~for or against~~, rebuttable by a preponderance of the evidence, that

1 joint legal custody, joint physical custody, ~~or sole custody~~ and
2 shared parenting time is in the best interest of the child. If the
3 presumption is rebutted, the court shall issue written findings of
4 fact and conclusions of law that support its decision and appoint a
5 guardian ad litem pursuant to Section 107.3 of this title to assist
6 the court in constructing a parenting time schedule that is
7 consistent with the best interest of the child and maximizes the
8 time each parent has with the child.

9 3. When in the best interests of the child, custody shall be
10 ~~awarded~~ granted in a way which ~~assures~~ ensures the frequent and
11 continuing contact of the child with both parents. When ~~awarding~~
12 granting custody to either parent, the court:

13 a. shall consider, among other facts, which parent is
14 more likely to allow the child or children frequent
15 and continuing contact with the noncustodial parent,
16 and

17 b. shall not prefer a parent as a custodian of the child
18 because of the gender of that parent.

19 4. In any action, there shall be neither a legal preference or
20 a presumption for or against private or public school or home-
21 schooling in ~~awarding~~ granting the custody of a child, or in
22 appointing a general guardian for the child.

23 5. Notwithstanding any custody determination made pursuant to
24 the Oklahoma Children's Code, when a parent of a child is required

1 to be separated from a child due to military service, the court
2 shall not enter a final order modifying an existing custody order
3 until such time as the parent has completed the term of duty
4 requiring separation. For purposes of this paragraph:

5 a. in the case of a parent who is a member of the Army,
6 Navy, Air Force, Marine Corps, or Coast Guard, the
7 term "military service" means a combat deployment,
8 contingency operation, or natural disaster requiring
9 the use of orders that do not permit any family member
10 to accompany the member,

11 b. in the case of a parent who is a member of the
12 National Guard, the term ~~"military service"~~ military
13 service means service under a call to active service
14 authorized by the President of the United States or
15 the Secretary of Defense for a period of more than
16 thirty (30) consecutive days under 32 U.S.C., Section
17 502(f) for purposes of responding to a national
18 emergency declared by the President and supported by
19 federal funds. ~~"Military service"~~ Military service
20 shall include any period during which a member is
21 absent from duty on account of sickness, wounds,
22 leave, or other lawful cause, and
23
24

1 c. the court may enter a temporary custody or visitation
2 order pursuant to the requirements of the Deployed
3 Parents Custody and Visitation Act.

4 6. In making an order for custody, the court shall require
5 compliance with Section 112.3 of this title.

6 D. 1. Except for good cause shown, a pattern of failure to
7 allow court-ordered visitation may be determined to be contrary to
8 the best interests of the child and as such may be grounds for
9 modification of the child custody order.

10 2. For any action brought pursuant to the provisions of this
11 section which the court determines to be contrary to the best
12 interests of the child, the prevailing party shall be entitled to
13 recover court costs, attorney fees, and any other reasonable costs
14 and expenses incurred with the action.

15 E. Except as otherwise provided by Section 112.1A of this
16 title, any child shall be entitled to support by the parents until
17 the child reaches eighteen (18) years of age. If a child is
18 regularly enrolled in and attending high school, as set forth in
19 Section 11-103.6 of Title 70 of the Oklahoma Statutes, other means
20 of high school education, or an alternative high school education
21 program as a full-time student, the child shall be entitled to
22 support by the parents until the child graduates from high school or
23 until the age of twenty (20) years, whichever occurs first. Full-
24 time attendance shall include regularly scheduled breaks from the

1 school year. No hearing or further order is required to extend
2 support pursuant to this subsection after the child reaches the age
3 of eighteen (18) years.

4 F. In any case in which provision is made for the custody or
5 support of a minor child or enforcement of such order and before
6 hearing the matter or signing any orders, the court shall inquire
7 whether public assistance money or medical support has been provided
8 by the Department of Human Services, ~~hereafter referred to as the~~
9 ~~Department,~~ for the benefit of each child. If public assistance
10 money, medical support, or child support services under the state
11 child support plan as provided in Section 237 of Title 56 of the
12 Oklahoma Statutes have been provided for the benefit of the child,
13 the Department shall be a necessary party for the adjudication of
14 the debt due to the State of Oklahoma, as defined in Section 238 of
15 Title 56 of the Oklahoma Statutes, and for the adjudication of
16 paternity, child support, and medical insurance coverage for the
17 minor children in accordance with federal regulations. When an
18 action is filed, the petitioner shall give the Department notice of
19 the action according to Section 2004 of Title 12 of the Oklahoma
20 Statutes. The Department shall not be required to intervene in the
21 action to have standing to appear and participate in the action.
22 When the Department is a necessary party to the action, any orders
23 concerning paternity, child support, medical support, or the debt
24

1 due to the State of Oklahoma shall be approved and signed by the
2 Department.

3 G. In any case in which a child support order or custody order
4 or both is entered, enforced, or modified, the court may make a
5 determination of the arrearages of child support.

6 SECTION 4. AMENDATORY 43 O.S. 2021, Section 112.2, as
7 amended by Section 2, Chapter 34, O.S.L. 2024 (43 O.S. Supp. 2025,
8 Section 112.2), is amended to read as follows:

9 Section 112.2. A. In every case involving the custody of,
10 guardianship of, or visitation with a child, the court shall
11 consider for determining the custody of, guardianship of, or ~~the~~
12 visitation with a child whether any person seeking custody or who
13 has custody of, guardianship of, or visitation with a child:

14 1. Is or has been subject to the registration requirements of
15 the Sex Offenders Registration Act or any similar act in any other
16 state;

17 2. Has been convicted of a crime listed in the Oklahoma Child
18 Abuse Reporting and Prevention Act or in Section 582 of Title 57 of
19 the Oklahoma Statutes;

20 3. Is an alcohol-dependent person or a drug-dependent person as
21 established by clear and convincing evidence and who can be expected
22 in the near future to inflict or attempt to inflict serious bodily
23 harm to himself or herself or another person as a result of such
24 dependency;

1 4. Has been convicted of domestic abuse within the past five
2 (5) years;

3 5. Is residing with an individual who is or has been subject to
4 the registration requirements of the Sex Offenders Registration Act
5 or any similar act in any other state;

6 6. Is residing with a person who has been convicted of a crime
7 listed in the Oklahoma Child Abuse Reporting and Prevention Act or
8 in Section 582 of Title 57 of the Oklahoma Statutes;

9 7. Is residing with a person who has been convicted of domestic
10 abuse within the past five (5) years; or

11 8. Has had custody, guardianship, or visitation rights
12 terminated due to failure to complete or participate in any court-
13 ordered substance abuse or mental health treatment.

14 B. There shall be a ~~rebuttable~~ presumption, rebuttable by clear
15 and convincing evidence, that it is not in the best interests of the
16 child to have custody or guardianship granted to a person who:

17 1. Is subject to or has been subject to the registration
18 requirements of the Sex Offenders Registration Act or any similar
19 act in any other state;

20 2. Has been convicted of a crime listed in the Oklahoma Child
21 Abuse Reporting and Prevention Act or in Section 582 of Title 57 of
22 the Oklahoma Statutes;

23 3. Is an alcohol-dependent person or a drug-dependent person as
24 established by clear and convincing evidence and who can be expected

1 in the near future to inflict or attempt to inflict serious bodily
2 harm to himself or herself or another person as a result of such
3 dependency;

4 4. Has been convicted of domestic abuse within the past five
5 (5) years;

6 5. Is residing with a person who is or has been subject to the
7 registration requirements of the Sex Offenders Registration Act or
8 any similar act in any other state;

9 6. Is residing with a person who has been convicted of a crime
10 listed in the Oklahoma Child Abuse Reporting and Prevention Act or
11 in Section 582 of Title 57 of the Oklahoma Statutes;

12 7. Is residing with a person convicted of domestic abuse within
13 the past five (5) years; or

14 8. Has had custody, guardianship, or visitation rights
15 terminated due to failure to complete or participate in any court-
16 ordered substance abuse or mental health treatment.

17 C. Custody of, guardianship of, or visitation with a child
18 shall not be granted to any person if it is established that the
19 custody, guardianship, or visitation will likely expose the child to
20 a foreseeable risk of material harm.

21 D. Except as otherwise provided by the Oklahoma Child
22 Supervised Visitation Program, court-ordered supervised visitation
23 shall be governed by the Oklahoma Child Supervised Visitation
24 Program.

E. For purposes of this section:

1. "Alcohol-dependent person" has the same meaning as such term is defined in Section 3-403 of Title 43A of the Oklahoma Statutes;

2. "Domestic abuse" has the same meaning as such term is defined in Section 60.1 of Title 22 of the Oklahoma Statutes;

3. "Drug-dependent person" has the same meaning as such term is defined in Section 3-403 of Title 43A of the Oklahoma Statutes; and

4. "Supervised visitation" means a program established pursuant to Section 110.1a of this title.

SECTION 5. AMENDATORY 43 O.S. 2021, Section 112.5, as last amended by Section 1, Chapter 151, O.S.L. 2025 (43 O.S. Supp. 2025, Section 112.5), is amended to read as follows:

Section 112.5. A. Custody or guardianship of a child may be ~~awarded~~ granted to:

1. A parent or to both parents jointly;

2. A grandparent;

3. A person who was indicated by the wishes of a deceased parent;

4. A relative of either parent;

5. The person in whose home the child has been living in a wholesome and stable environment including, but not limited to, a foster parent; or

6. Any other person deemed by the court to be suitable and able to provide adequate and proper care and guidance for the child.

1 B. In applying subsection A of this section, a court shall
2 ~~award~~ grant custody or guardianship of a child to a parent, unless a
3 nonparent proves by clear and convincing evidence that:

4 1. For a period of at least twelve (12) months out of the last
5 fourteen (14) months immediately preceding the commencement of the
6 custody or guardianship proceeding, the parent has willfully failed,
7 refused, or neglected to contribute to the support of the child:

8 a. in substantial compliance with a support provision or
9 an order entered by a court of competent jurisdiction
10 adjudicating the duty, amount, and manner of support,
11 or

12 b. according to the financial ability of the parent to
13 contribute to the support of the child if no provision
14 for support is entered by a court of competent
15 jurisdiction, or an order of modification subsequent
16 thereto.

17 For purposes of this paragraph, incidental or token financial
18 contributions shall not be considered in establishing whether a
19 parent has satisfied his or her obligation under subparagraphs a and
20 b of this paragraph; or

21 2. a. ~~the~~ The child has been left in the physical custody of
22 a nonparent by a parent or parents of the child for
23 one (1) year or more, excluding parents on active duty
24 in the military, and

1 b. ~~the~~ The parent or parents have not maintained regular
2 visitation or communication with the child.

3 For purposes of this paragraph, incidental or token visits or
4 communications shall not be considered in determining whether a
5 parent or parents have regularly maintained visitation or
6 communication.

7 C. In applying subsection A of this section, a court shall
8 ~~award~~ grant custody or guardianship of a child to a parent, unless
9 the court finds that the parent is affirmatively unfit. There shall
10 be a ~~rebuttable~~ presumption, rebuttable by clear and convincing
11 evidence, that a parent is affirmatively unfit if the parent:

12 1. Is or has been subject to the registration requirements of
13 the ~~Oklahoma~~ Sex Offenders Registration Act or any similar act in
14 any other state, except as provided in subsection D of this section;

15 2. Has been convicted of a crime listed in Section 582 of Title
16 57 of the Oklahoma Statutes;

17 3. Is an alcohol-dependent person or a drug-dependent person as
18 established by clear and convincing evidence and who can be expected
19 in the near future to inflict or attempt to inflict serious bodily
20 harm to himself or herself or another person as a result of such
21 dependency;

22 4. Has been convicted of domestic abuse within the past five
23 (5) years;
24

1 5. Is residing with a person who is or has been subject to the
2 registration requirements of the ~~Oklahoma~~ Sex Offenders Registration
3 Act or any similar act in any other state;

4 6. Is residing with a person who has been convicted of a crime
5 listed in Section 843.5 of Title 21 or in Section 582 of Title 57 of
6 the Oklahoma Statutes;

7 7. Is residing with a person who has been convicted of domestic
8 abuse within the past five (5) years; or

9 8. Has been convicted of a crime listed in the Oklahoma Child
10 Abuse Reporting and Prevention Act.

11 D. In applying subsection A of this section, a court shall not
12 ~~award~~ grant custody or guardianship of a child to any person who has
13 been convicted, whether upon a verdict or plea of guilty or upon a
14 plea of nolo contendere, or received a suspended sentence or any
15 probationary term, or is currently serving a sentence or any form of
16 probation or parole in a court in any state ~~of~~ for any of the
17 following crimes:

18 1. Sexual abuse or sexual exploitation of a child, as provided
19 in Section 843.5 of Title 21 of the Oklahoma Statutes;

20 2. Child endangerment, if the offense involved sexual abuse of
21 a child, as provided in Section 852.1 of Title 21 of the Oklahoma
22 Statutes;

1 3. Kidnapping, if the offense involved sexual abuse or sexual
2 exploitation of a child, as provided in Section 741 of Title 21 of
3 the Oklahoma Statutes;

4 4. Incest, as provided in Section 885 of Title 21 of the
5 Oklahoma Statutes;

6 5. Forcible sodomy of a child, as provided in Section 888 of
7 Title 21 of the Oklahoma Statutes;

8 6. Child stealing, if the offense involved sexual abuse or
9 sexual exploitation, as provided in Section 891 of Title 21 of the
10 Oklahoma Statutes;

11 7. Procuring minors for participation in child sexual abuse
12 material, as provided in Section 1021.2 of Title 21 of the Oklahoma
13 Statutes;

14 8. Consent to participation of minors in child sexual abuse
15 material, as provided in Section 1021.3 of Title 21 of the Oklahoma
16 Statutes;

17 9. Facilitating, encouraging, offering, or soliciting sexual
18 conduct with a minor by use of technology, as provided in Section
19 1040.13a of Title 21 of the Oklahoma Statutes;

20 10. Distributing child sexual abuse material, as provided in
21 Section 1040.13 of Title 21 of the Oklahoma Statutes;

22 11. Possession, purchase, or procurement of child sexual abuse
23 material, as provided in Section 1024.2 of Title 21 of the Oklahoma
24 Statutes;

1 12. Aggravated possession of child sexual abuse material, as
2 provided in Section 1040.12a of Title 21 of the Oklahoma Statutes;

3 13. Procuring a child under eighteen (18) years of age for
4 ~~prostitution~~, child sex trafficking as provided in Section 1087 of
5 Title 21 of the Oklahoma Statutes;

6 14. Inducing, keeping, detaining, or restraining a child under
7 eighteen (18) years of age for ~~prostitution~~, child sex trafficking
8 as provided in Section 1088 of Title 21 of the Oklahoma Statutes;

9 15. First degree rape, as provided in Section 1114 of Title 21
10 of the Oklahoma Statutes;

11 16. Lewd or indecent proposals or acts to a child under sixteen
12 (16) years of age, as provided in Section 1123 of Title 21 of the
13 Oklahoma Statutes; or

14 17. Solicitation of minors in any crime provided in subsection
15 B of Section 1021 of Title 21 of the Oklahoma Statutes.

16 E. Subject to subsection F of this section, a custody
17 determination made in accordance with subsections B and C of this
18 section shall not be modified unless the person seeking the
19 modification proves that:

20 1. Since the making of the order sought to be modified, there
21 has been a permanent, material, and substantial change of conditions
22 that directly affects the best interests of the child; and
23
24

1 2. That as a result of such change of circumstances, the child
2 would be substantially better off with regard to ~~its~~ his or her
3 temporal, mental, and moral welfare if custody were modified.

4 F. If the custody determination made in accordance with
5 subsections B and C of this section indicates that custody is
6 temporary, the determination may be modified upon a showing that the
7 conditions which led to the custody or guardianship determination no
8 longer exist.

9 SECTION 6. This act shall become effective July 1, 2027.

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11 60-2-3800 BLB 3/25/2026 4:10:25 PM
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